

STATE OF NEW YORK

8218--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. PHEFFER AMATO, WIEDER -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to the calculation of past service credit for members in the title of deputy sheriff transferring between the New York state and local employees' retirement system to the New York state and local police and fire retirement system

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 43 of the retirement and social security law is
2 amended by adding a new subdivision m to read as follows:

3 m. 1. Notwithstanding any other law, rule or regulation to the contra-
4 ry, any member in the title of deputy sheriff who provided police
5 protection or correction officer service transferring from the New York
6 state and local employees' retirement system to the New York state and
7 local police and fire retirement system after the effective date of this
8 subdivision and any member previously in the title of deputy sheriff who
9 provided police protection or correction officer service having made
10 such transfer shall be entitled to a determination of the amount of
11 service credit that is eligible on a twenty year or twenty-five year
12 retirement plan if such deputy sheriff has served for at least one
13 year in such employment and if, within one year of the date on which
14 such deputy sheriff first became a member of the New York state and
15 local police and fire retirement system or within one year of the effec-
16 tive date of this subdivision, such member elects to do so. If the
17 member subsequently transfers back to the New York state and local
18 employees' retirement system, the full amount of service credit earned
19 while in the title of deputy sheriff who provided police protection or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10532-06-6

1 correction officer service shall be transferred back to the New York
2 state and local employees' retirement system.

3 2. The calculation of the amount of such service credit for a member
4 will be determined by multiplying the eligible service credited while in
5 the title of deputy sheriff who provided police protection or correction
6 officer service in the New York state and local employees' retirement
7 system plan by a salary multiplier, reflecting the rate of salary in the
8 New York state and local employees' retirement system plan relative to
9 the rate of salary in the New York state and local police and fire
10 retirement system plan, and a billing rate multiplier, reflecting the
11 actuarial long-term average billing rate in the New York state and local
12 employees' retirement system plan relative to the actuarial long-term
13 average billing rate in the New York state and local police and fire
14 retirement system plan. The determination of the salary multiplier and
15 billing rate multiplier will be determined by the actuary of the New
16 York state and local employees' retirement system and the New York state
17 and local police and fire retirement system. The amount of such service
18 credited to the member in the New York state and local police and fire
19 retirement system plan shall not exceed the amount of service credited
20 to the member while in the title of deputy sheriff who provided police
21 protection or correction officer service in the New York state and local
22 employees' retirement system plan.

23 3. In no event shall the New York state and local employees' retire-
24 ment system service credited to a member of the New York state and local
25 police and fire retirement system pursuant to this subdivision exceed a
26 total of ten years.

27 § 2. Section 343 of the retirement and social security law is amended
28 by adding a new subdivision j to read as follows:

29 j. 1. Notwithstanding any other law, rule or regulation to the contra-
30 ry, any member in the title of deputy sheriff who provided police
31 protection or correction officer service transferring from the New York
32 state and local employees' retirement system to the New York state and
33 local police and fire retirement system after the effective date of this
34 subdivision and any member previously in the title of deputy sheriff who
35 provided police protection or correction officer service having made
36 such transfer shall be entitled to a determination of the amount of
37 service credit that is eligible on a twenty year or twenty-five year
38 retirement plan if such deputy sheriff has served for at least one year
39 in such employment and, within one year of the date on which such deputy
40 sheriff first became a member of the New York state and local police and
41 fire retirement system or within one year of the effective date of this
42 subdivision, such member elects to do so. If the member subsequently
43 transfers back to the New York state and local employees' retirement
44 system, the full amount of service credit earned while in the title of
45 deputy sheriff who provided police protection or correction officer
46 service shall be transferred back to the New York state and local
47 employees' retirement system.

48 2. The calculation of the amount of such service credit for a member
49 will be determined by multiplying the eligible service credited while in
50 the title of deputy sheriff who provided police protection or correction
51 officer service in the New York state and local employees' retirement
52 system plan by a salary multiplier, reflecting the rate of salary in the
53 New York state and local employees' retirement system plan relative to
54 the rate of salary in the New York state and local police and fire
55 retirement system plan, and a billing rate multiplier, reflecting the
56 actuarial long-term average billing rate in the New York state and local

employees' retirement system plan relative to the actuarial long-term average billing rate in the New York state and local police and fire retirement system plan. The determination of the salary multiplier and billing rate multiplier will be determined by the actuary of the New York state and local employees' retirement system and the New York state and local police and fire retirement system. The amount of such service credited to the member in the New York state and local police and fire retirement system plan shall not exceed the amount of service credited to the member while in the title of deputy sheriff who provided police protection or correction officer service in the New York state and local employees' retirement system plan.

3. In no event shall the New York state and local employees' retirement system service credited to a member of the New York state and local police and fire retirement system pursuant to this subdivision exceed a total of ten years.

4. If such member subsequently retires on an age based retirement plan in the New York state and local police and fire retirement system instead of a twenty year or twenty-five year plan, the full amount of service credit earned while in the title of deputy sheriff shall be granted.

5. No member who receives service credit pursuant to this subdivision shall be eligible to receive additional service credit pursuant to subdivision b of section three hundred eighty-four-e of this article if such deputy sheriff's employer has elected to provide such service credit.

§ 3. This act shall take effect on the sixtieth day after it shall have become a law.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would expand the definition of creditable service under twenty-year and twenty-five-year retirement plans in the New York State and Local Police and Fire Retirement System (NYSLPFRS) to include deputy sheriff and correction officer service rendered in the New York State and Local Employees' Retirement System (NYSLERS). The amount of service credit granted, as calculated by the NYSLPFRS Actuary, cannot exceed 10 years nor the NYSLERS service credit.

Insofar as this bill affects NYSLPFRS, the increased costs would be shared by all participating employers in NYSLPFRS. It is estimated that the past service cost will average approximately 25% of an affected member's compensation for each year of additional service credit that is granted.

Further, we anticipate some administrative costs to implement the provisions of this legislation.

The number of current and future members who could be affected by this legislation cannot be readily determined.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated March 27, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-37. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.